# 26STCV11284 26STCV11284

County: los-angeles

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Case Number: 26STCV11284 Hearing Date: August 10, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.
Kalra, Department 511

HEARING DATE: August
10, 2026

CASE NAME: Arari
Transportation Inc., et al. v. Tesla, Inc.

CASE NO.: 26STCV11284

MOTION
FOR ATTORNEYS FEES AND COSTS

MOVING PARTY: Plaintiffs
Arari Transportation Inc. and Arayik Dereniki Gevorgyan

RESPONDING PARTY(S): Defendant Tesla, Inc.

REQUESTED RELIEF:

1. An
order awarding Plaintiffs attorneys' fees of $13,892.00, a 0.3 multiplier of
$4,167.00, $2,500 in anticipated fees to prepare a reply, and $665.24 in costs.

TENTATIVE RULING:

1. Motion for attorneys' fees is GRANTED, as modified, and costs in full.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On April 8, 2026, Plaintiffs Arari Transportation Inc. and Arayik Dereniki Gevorgyan (Plaintiffs) filed a Song-Beverly complaint against Defendant Tesla, Inc. (Defendant) with causes of action for: (1) violation of Civ. Code § 1793.2(d); (2) violation of Civ. Code § 1793.2(b); (3) violation of Civ. Code § 1793.2(a)(3); and (4) breach of the implied warranty of merchantability.

Plaintiff alleges they purchased a 2024 Tesla Model S on May 24, 2025. They allege that the vehicle manifested defects during the warranty period that Defendant could not remedy.

On May 20, 2026, Plaintiffs filed a notice of settlement.

On May 20, 2026, Plaintiffs also filed a memorandum of costs and the instant motion for attorneys' fees and costs. On July 28, 2026, Defendant filed an opposition. On August 3, 2026, Plaintiff filed a Reply and attempted to offer additional evidence.

LEGAL STANDARD:

A prevailing buyer in an action under Song-Beverly "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the Court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."¿ (Civ. Code, § 1794(d).) By¿permitting¿buyers who prevail under Song-Beverly to recover their attorneys' fees, "our Legislature has provided injured consumers strong encouragement to seek legal redress in a situation in which a lawsuit might not otherwise have been economically feasible." (Murillo v. Fleetwood Enterprises, Inc. (1998) 17 Cal.4th 985, 994.)¿¿¿¿¿

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The prevailing party has the burden of showing that the requested attorney fees are reasonable. (Robertson v. Fleetwood Travel Trailers of California Inc.¿(2006) 144 Cal.App.4th 785, 817.) The party seeking attorney fees “is not necessarily entitled to the compensation of the value of attorney services according to [his or her] own notion or to the full extent claimed¿. . . .”¿ (Levy v. Toyota Motor Sales, USA, Inc.¿(1992) 4 Cal.App.4th 807, 816.) If the “time expended or the monetary charge being made for the time expended are not reasonable under all circumstances, then the court must take this into account and award fees in a lesser¿amount.”¿(Nightingale v. Hyundai Motor America¿(1994) 31 Cal.App.4th 99, 104.)¿¿¿¿¿

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A calculation of attorneys’ fees for a Song-Beverly action begins with the “lodestar” approach, under which the Court fixes the lodestar at “the number of hours reasonably expended multiplied by the reasonable hourly rate.” (Margolin v. Regional Planning Com.¿(1982) 134 Cal.App.3d 999, 1004-1005.) “California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award.” (Ibid.)¿¿¿¿

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“It is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, non-complex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted.”¿ (Morris v. Hyundai Motor America¿(2019) 41 Cal.App.5th 24, 39.) It is also¿appropriate to¿reduce a fee award based on “inefficient or duplicative efforts” in the billing record. (Id. at p. 38.) However, the analysis must be “reasonably specific” and cannot rely on general notions about the fairness of the fee award. (Kerkeles¿v. City of San Jose¿(2015) 243 Cal.App.4th 88, 102.) Moreover, in conducting the analysis, courts are not¿permitted¿to tie any reductions in the fee¿award¿to some proportion of the¿buyer’s damages¿recovery. (Warren v. Kia Motors America, Inc.¿(2018) 30 Cal.App.5th 24, 39.)¿¿¿¿¿

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The lodestar figure may also be adjusted, based on consideration of factors specific to the case,¿in order to¿fix the fee

at¿the¿fair¿market value¿for the legal services provided. (Serrano v. Priest¿(1977) 20 Cal.3d 25, 49;¿PLCM Group, Inc. v. Drexler¿(2000) 22 Cal.App.4th 1084, 1095.)¿The

factors considered in¿determining¿the modification of the lodestar include the

nature and difficulty of the litigation, the amount of money involved, the

skill¿required¿and employed to handle the case, the attention given, the

success or failure,¿and other

circumstances in the case. (EnPalm,

LLC v.¿Teitler¿Family Trust¿(2008) 162 Cal. App. 4th 770, 774 (emphasis in

original).)¿A negative modifier was¿appropriate when¿duplicative work had been

performed. (Thayer v. Wells Fargo

Bank,¿N.A.¿(2001) 92 Cal.App.4th 819.)¿¿

ANALYSIS:

i.

Prevailing Party

Here, Plaintiffs are the prevailing party because the CCP §

998 offer they accepted on May 11, 2026 provides such. (Declaration of Armig

Khodanian (Khodanian Decl.) ¶¶ 24, 25.)

i.

Lodestar Fees

The lodestar method looks at the time spent on a matter

multiplied by the reasonable hourly rate. (Serrano,

supra¿20 Cal.3d at 49).¿The two-step process begins with the lodestar

method, which is the time spent on the matter multiple by the hourly rate.

After the lodestar method, the second step is¿determining¿whether a multiplier

should be applied. The factors that¿Courts¿look at to determine if a multiplier

is reasonable are: 1) the novelty and difficulty of the questions involved, (2)

the skill displayed in presenting them, (3) the extent to which the nature of

the litigation precluded other employment by the attorneys, (4) the contingent

nature of the fee award.” (Ketchum v.

Moses¿(2001) 24 Cal.4th 1122, 1132).¿¿¿

a. Reasonableness

of Hourly Rate

Plaintiffs seek to recover an hourly rate of $475 per hour for attorney work and $185 per hour for paralegal work.

Defendant challenges the rates as not representing the true market value of the services. They use their own billing rates of $235-$350 per hour as a comparison.

The trial court has discretion to “determine the hourly rates that should be used in the lodestar calculus.” (Morris, supra, 41 Cal.App.5th at p. 35.) It may do so by relying “on its own knowledge and familiarity with the legal market,” “the experience, skill, and reputation of the attorney requesting fees,” “the difficulty or complexity of the litigation to which that skill was applied,” and “affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (Id. at p. 41.)

Here, the hourly rates requested are reasonable based on the hourly rate of similarly situated attorneys in the Los Angeles area. Notably, Plaintiff provided evidence supporting the hourly rates requested. (Khodanian Decl. ¶¶ 7, 11, 13.)

Thus, the hourly rates are¿appropriate.¿However, billing at¿premium rates¿comes with the expectation that the attorney¿also work¿in an efficient manner that reflects the premium paid for his or her services. The court considers this fact in addressing the reasonableness of the hours¿expended.¿

b. Reasonableness of Hours Spent

Plaintiffs seek to recover a total of 31.2 hours on this matter.[1]

Defendant argues this is unreasonably inflated for templated work and contains unbillable clerical work.

Although a verified fee bill is “prima facie evidence the costs, expenses and services listed were necessarily incurred,” (Hadley v. Krepel¿(1985) 167 Cal.App.3d 677, 682), ultimately,¿Counsel¿still has the burden to¿demonstrate¿the reasonableness of charges.¿(Mikhaeilpoor,¿supra,¿48 Cal.App.5th¿at p.¿247.)

“A trial court may not rubber stamp a request for attorney fees, but must determine the number of hours reasonably expended.” (Morris, supra, 41 Cal.App.5th at p. 38 [citing Donahue v. Donahue (2010) 182 Cal.App.4th 259, 271.]) In their evaluation, courts consider whether the case was overstaffed, how much time the attorney spent on particular claims, and whether the hours were reasonably expended. (Ibid.) In short, courts will not allow “padding” in the form of inefficient or duplicative efforts. (Ibid.; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) “Plainly, it is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, noncomplex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted.” (Morris, supra, 41 Cal.App.5th at p. 39.)

Here, the Court has reviewed the detailed fee bill with an eye for excessive, duplicative or unreasonable charges as contended by Defendant. While for the most part, the fees are reasonable, the total hours spent on this straightforward lemon law matter and billed at premium attorney hours is unreasonable. For instance, several items seek purely clerical work. (See, e.g., Exhibit B at item 05/20/26 “Added filing cost to expenses for Motion for Atty Fees. Filed Motion.”) Several other instances took excessive time to complete, such as drafting this straightforward fee motion. (Id. at 05/19/26 – 05/20/26 seeking in total 6.4 hours at attorney’s rate.) These represent unreasonable use of premium attorney resources for items that are not novel or complex issues requiring extended time. (Morris, supra, 41 Cal.App.5th at p. 37.)

Every case is different. Nonetheless, the Court has a lot of experience in evaluating fee bills in lemon law cases and assessing what is reasonable. This matter settled within a month. Plaintiff’s counsel estimated that there legal work was reasonably worth $7,000. When Defendant refused to bridge a $500 gap, this motion was filed. The court agrees with Plaintiff’s contention that, “Parties who litigate with no holds barred in cases such as this, in which the prevailing party is entitled to a fee award, assume the risk they will have to reimburse the excessive expenses they force upon their adversaries.” (Stokus

v. Marsh (1990) 217 Cal.App.3d 647, 653-654.) However, that is not license to pad the bill with unreasonable charges.

Therefore, the Court finds based upon its experience and knowledge of this type of litigation, the lack of novelty and complexity of this case, and, to align with the hours that should reasonably have been incurred, a reasonable lodestar amount is $9,250. To be clear, the Court makes this finding based upon its experience and knowledge of this type of litigation, the lack of novelty and complexity of this case, and the professed specialization of Plaintiffs' counsel.

Accordingly, the court GRANTS Plaintiffs' motion for attorneys' fees, as modified, for $9,250.

ii.
Costs

Plaintiff seeks to recover $665.24 in costs.

Defendant did not challenge the costs.

"Except as otherwise¿expressly¿provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) (Emphasis added.) Code of Civil Procedure section 1032, subdivision (a) defines a "prevailing party" as "[1] the party with a net monetary recovery, [2] a defendant in whose favor dismissal is entered, [3] a defendant where neither plaintiff nor defendant obtains any relief, and [4] a defendant as against those plaintiffs who do not recover any relief against that defendant."¿¿¿¿

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Costs are allowable if incurred,¿whether or not¿paid. (Code Civ. Proc., § 1033.5, subd. (c)(1).) Costs must also be "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" and must be reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c)(2)-(3).)¿

Here, the costs are reasonable. First, they are for filing and motion fees and service of process.

Accordingly, the court GRANTS Plaintiffs' request for
costs in full.

CONCLUSION:

For
the foregoing reasons, the Court decides the pending motion as follows:

1. Motion
for attorneys' fees is GRANTED, as modified, in $9,250 and costs in full.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: August 10, 2026 __________________________________ Upinder
S. Kalra

Judge
of the Superior Court

[1]
Plaintiffs also requests a multiplier. However, a
multiplier is not necessary. While Plaintiff's counsel obtained
excellent results, this was a straightforward lemon law action
that settled within 30 days without any motion practice. There are simply no
factors in support of a multiplier. This was a relatively
straightforward reasonably routine lemon law case, an area in which Plaintiffs'
counsel specializes, there were not any novel or complex issues that were
presented. Thus, the contingent risks, skill, and difficulty Plaintiffs'
attorneys assert are absorbed by their hourly rates. (See Robertson v. Fleetwood Travel Trailers of California. Inc. (2006)
144 Cal.App.4th 785, 822.) Stated otherwise, Plaintiff has failed it in its
burden to establish that the Ketchum
factors warrant a positive multiplier. Accordingly, Plaintiffs' request for
a lodestar multiplier is denied.